

LAST WILL AND TESTAMENT OF ELINOR MARGARET HAYES

I, ELINOR MARGARET HAYES, residing at 412 Riverside Drive, Apt 7C, New York, New York 10025, being of sound mind and not acting under duress or undue influence, do hereby make, publish and declare this to be my Last Will and Testament, hereby revoking all wills and codicils previously made by me.

ARTICLE I – IDENTIFICATION

- A. I was born on March 18, 1942, in Boston, Massachusetts.
- B. My husband, Robert James Hayes, predeceased me on April 9, 2017.
- C. I have two living children:
 - (1) Catherine Rose Hayes-Park, born July 2, 1969, residing at 27 Linden Court, Brooklyn, New York 11215.
 - (2) Daniel James Hayes, born February 14, 1972, residing at 188 Pearl Street, Apt 3, Portland, Maine 04101.

ARTICLE II – DEBTS AND EXPENSES

I direct my Executor to pay from my residuary estate all of my legally enforceable debts, the expenses of my last illness, and the costs of administering my estate.

ARTICLE III – SPECIFIC BEQUESTS

- A. I give my Steinway model B grand piano (serial no. 391-204) to my granddaughter, ANYA HAYES-PARK, if she survives me. The estimated value of this piano is forty-eight thousand dollars (\$48,000.00).
- B. I give the sum of TEN THOUSAND DOLLARS (\$10,000.00) to the COLUMBIA UNIVERSITY PRESS in recognition of my career.

ARTICLE IV – RESIDUARY ESTATE

I give, devise and bequeath all the rest, residue and remainder of my estate, of whatever kind and wherever situated, including any property over which I have a power of appointment, in equal shares (50% / 50%) to my two children, CATHERINE ROSE HAYES-PARK and DANIEL JAMES HAYES, per stirpes.

ARTICLE V – APPOINTMENT OF EXECUTOR

- A. I nominate my daughter, CATHERINE ROSE HAYES-PARK, as Executor of this Will, to serve without bond.
- B. If she is unable or unwilling to serve, I nominate my son, DANIEL JAMES HAYES, as successor Executor.

ARTICLE VI – POWERS OF EXECUTOR

My Executor shall have all powers conferred by the laws of the State of New York upon executors and administrators, including without limitation the power to sell, lease, and mortgage real and personal property without court order.

IN WITNESS WHEREOF, I have signed and declared this instrument to be my Last Will and Testament on this 12th day of November, 2018, at New York, New York.

Elinor Margaret Hayes – Testatrix

WITNESSES:

The foregoing instrument was signed in our joint presence by Elinor Margaret Hayes, who declared it to be her Last Will and Testament.

(1) _____

Margaret O. Sullivan, 220 East 65th St, New York, NY 10065

(2) _____
Jonathan B. Reese, 14 West 86th St, New York, NY 10024

SELF-PROVING AFFIDAVIT (NY EPTL §3-2.1)

State of New York, County of New York

Subscribed and sworn before me on November 12, 2018

Maria Velasquez, Notary Public, State of New York
Commission expires January 17, 2022